Utakal Chamber Of Commerce vs Orissa Electricity Regulatory ... on 22 March, 2011

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

Appeal No. 63 of 2007

Dated: 22nd March, 2011

Present : Hon'ble Mr. Justice M. Karpaga Vinayagam, Chairperson
Hon'ble Mr. Rakesh Nath, Technical Member
Hon'ble Mr. Justice P.S. Datta, Judicial Member

Utakal Chamber of Commerce .... Appellant (s)

Versus

Orissa Electricity Regulatory Commission ...Respondent (s)

Counsel for the Appellant (s) : Mr. Suresh Tripathy,
Mr. Ghanshyam Yadav
Counsel for the Respondent (s) : Mr. R.K. Mehta for GRIDCO
Mr. Hasan Murtaza & Mr. S. Patnaik For R.3

ORDER

In view of the affidavit filed by Mr. Ghanshyam Yadav, the junior of Mr. Suresh Tripathy, learned counsel appearing for the Appellant, tendering apology for the statement earlier made, we deem it fit to discharge the said Mr. Ghanshyam Yadav, the learned counsel, as we feel that there is no necessity to proceed further in the matter. Accordingly, he is discharged.

Mr. Suresh Tripathy, the learned counsel for the Appellant, on the basis of the instructions by his client seeks permission of this Court to withdraw the Appeal.

Permission is granted. Accordingly, the Appeal is dismissed as withdrawn.

(Justice P.S. Datta) (Rakesh Nath) (Justice M. Karpaga Vinayagam) Judicial Member Technical Member Chairperson ts/KSM